SUPREME COURT OF THE UNITED STATES

No. 25A608

GREG ABBOTT, ET AL. *v.* LEAGUE OF UNITED LATIN AMERICAN CITIZENS, ET AL.

ON APPLICATION FOR STAY

[December 4, 2025]

With an eye on the upcoming 2026 midterm elections, several States have in recent months redrawn their congressional districts in ways that are predicted to favor the State's dominant political party. Texas adopted the first new map, then California responded with its own map for the stated purpose of counteracting what Texas had done. North Carolina followed suit, and other States are also considering new maps.

Respondents in this case challenged the new Texas map, contending that the legislature's motive was predominantly racial. A divided three-judge District Court agreed and enjoined the use of the new map in the 2026 elections. With the 2026 campaign underway, the State of Texas and several of its officials applied to this Court for a stay.

Based on our preliminary evaluation of this case, Texas satisfies the traditional criteria for interim relief. See *Indiana State Police Pension Trust* v. *Chrysler LLC*, 556 U. S. 960 (2009) (*per curiam*). Texas is likely to succeed on the merits of its claim that the District Court committed at least two serious errors. First, the District Court failed to honor the presumption of legislative good faith by construing ambiguous direct and circumstantial evidence against the legislature. Contra, *Alexander* v. *South Carolina State Conference of the NAACP*, 602 U. S. 1, 10 (2024). Second, the District Court failed to draw a dispositive or near-dispositive adverse inference against respondents even

though they did not produce a viable alternative map that met the State's avowedly partisan goals. Contra, *id.*, at 34–35.

Texas has also made a strong showing of irreparable harm and that the equities and public interest favor it. "This Court has repeatedly emphasized that lower federal courts should ordinarily not alter the election rules on the eve of an election." *Republican National Committee* v. *Democratic National Committee*, 589 U. S. 423, 424 (2020) (*per curiam*). The District Court violated that rule here. The District Court improperly inserted itself into an active primary campaign, causing much confusion and upsetting the delicate federal-state balance in elections.

The application for stay presented to JUSTICE ALITO and by him referred to the Court is granted. The November 18, 2025 order entered by the United States District Court for the Western District of Texas, case No. 3:21–cv–259, is stayed pending the timely filing of an appeal in this Court. Should a notice of appeal and jurisdictional statement be timely filed, this order shall remain in effect pending this Court's action on the appeal. If the appeal is dismissed, or the judgment is affirmed, this order will terminate automatically. In the event that jurisdiction is noted or postponed, this order will remain in effect pending the sending down of the judgment of this Court.

JUSTICE ALITO, with whom JUSTICE THOMAS and JUSTICE GORSUCH join, concurring in the grant of the application for stay.

I join the order issued by the Court. Texas needs certainty on which map will govern the 2026 midterm elections, so I will not delay the Court's order by writing a detailed response to each of the dissent's arguments. Instead, I offer two short points which for me are decisive.

First, the dissent does not dispute—because it is indisputable—that the impetus for the adoption of the Texas